



**DEFENSE LOGISTICS AGENCY (DLA)
DLA CONTRACTING SERVICES OFFICE-PHILADELPHIA
700 ROBBINS AVENUE
PHILADELPHIA, PA 19111-5092**

**JUSTIFICATION AND APPROVAL
FOR OTHER THAN FULL AND OPEN COMPETITION**

1. IDENTIFICATION OF THE AGENCY AND CONTRACTING ACTIVITY.

Requiring Activity:

Defense Logistics Agency (DLA)
8725 John J. Kingman Rd.
Ft. Belvoir, VA 22160
[REDACTED]

Contracting Activity:

DLA Contracting Services Office Philadelphia Site
700 Robbins Ave
Philadelphia, PA 19111

2. NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED.

This justification and approval for other than full and open competition authorizes and approves the renewal of brand name specific RS Means Online (RSMO) concurrent software subscription license maintenance which is brand name particular to one manufacturer, The Gordian Group.

3. A DESCRIPTION OF THE SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS/ESTIMATED DOLLAR AMOUNT.

DLA Installation Support (DS) has a requirement to renew RSMO maintenance on its existing concurrent software.

This requirement will be a 3-year contract consisting of a 12-month base period with a CLIN for training, and two 12-month option periods, each with a training CLIN. The total estimated cost of the full 3-year contract, including all CLINS, is [REDACTED]

The base period of performance is 1 June 2026 to 31 May 2027. The estimated cost of the base period, comprising two CLINs, is [REDACTED] and will be fully funded utilizing FY26 funds.

CLIN	Qty	Product
0001	Base Period of Performance: 1 June 2026 to 31 May 2027	
	50	Concurrent RSMO Users
0002	Optional CLIN Period of Performance: TBD	
	10	Online Self Paced RSMO Training
0003	Option 1 Period of Performance: 1 June 2027 to 31 May 2028	
	50	Concurrent RSMO Users
0004	Optional CLIN Period of Performance: TBD	
	10	Online Self Paced RSMO Training
0005	Option 2 Period of Performance: 1 June 2028 to 31 May 2029	
	50	Concurrent RSMO Users
0006	Optional CLIN 0002 Period of Performance: TBD	
	10	Online Self Paced RSMO Training

FULL AND OPEN COMPETITION:

The statutory authority permitting other than full and open competition is 10 U.S.C. 2304(c)(1), as implemented by FAR 6.302-1 “Only one Responsible Source and no other supplies or services will satisfy agency requirements”. RSMO software subscription licenses are a brand name product of RS Means (dba The Gordian Group). No other firm can provide software licenses for this brand name product due to the proprietary nature of the software. Use of this brand name description in the acquisition is essential to the Government’s requirements, thereby precluding consideration of a product of another company. A brand name item peculiar to RS Means is essential to the Government’s requirement because other products do not meet or cannot be modified to meet the Agency’s needs without assuming unnecessary operational risks. RS Means (dba The Gordian Group), or their authorized resellers, are the only providers of the required software maintenance for RS Means brand name software products.

5. DEMONSTRATION THAT THE PROPOSED CONTRACTOR’S UNIQUE QUALIFICATIONS OR THE NATURE OF ACQUISITION REQUIRES USE OF CITED AUTHORITY:

RS Means Online has been approved by the DLA Chief Technology Officer (CTO) as the enterprise software to develop independent government cost estimates for both new construction projects and renovation projects. The software provides a database with cost factors to develop estimates for all disciplines of work required for construction projects including materials, equipment, and labor as well as other key information including productivity rates, crew composition, and contractor's overhead and profit rates.

- RS Means Online is the largest provider of current construction cost data and combines powerful web-based access to over 100,000 industry-standard costs -- 85,000 unit prices, 25,000 building assemblies, and 42,000 facilities repair and remodeling items covering every category of construction. RSMO increases estimating accuracy, slashes estimating time, and ensures DLA engineers make informed cost-based decisions at every stage of the construction process.

- With the constant flow of new construction methods and materials, DLA engineers are challenged to find the time to evaluate all the different construction cost possibilities. RS Means continually updates labor and material costs and also provides capability to adjust costs to reflect prices in specific geographic areas.
- RSMO provides DLA engineers capability to define preference in wages, crew specifics, mark-ups, construction materials, custom cost lines, and equipment rental costs. DLA engineers can customize for a specific estimator and automatically apply to all future estimates, if desired. Cost data can be localized to a specific project site as well.
- RSMO provides square foot models for quick conceptual estimates
- DLA engineers will be able to save projects and track historical actual costs to improve future construction estimates. RSMO allows engineers to tag and store favorites for fast access to frequently used line items and clone estimates to save time.

6. DESCRIPTION OF EFFORTS MADE TO ENSURE THAT OFFERS ARE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE:

RS Means (dba The Gordian Group) is the only manufacturer that provides RSMO software subscription licenses and training to operate those licenses.

7. DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT WILL BE FAIR AND REASONABLE:

As the Contracting Officer, I hereby determine that pricing will be fair and reasonable based on pricing analysis in accordance with FAR 15.404-1. It is anticipated that the Government will use various price analysis techniques including, but not limited to: 1) comparison of proposed prices received in response to the solicitation (FAR 15.404-1(b)(2)(i)); 2) comparison with competitive published price lists (FAR 15.404-1(a)(2)(iv)); and 3) comparison of proposed prices within prices obtained through market research of the same or similar items (FAR 15.404-1(b)(2)(vi)) in order to obtain a fair and reasonable price. The contracting officer will determine prices fair and reasonable prior to award using price history, IGCE, and published price lists (if available).

8. DESCRIPTION OF THE MARKET RESEARCH CONDUCTED AND THE RESULTS:

RS Means (dba The Gordian Group) is the only manufacturer that provides RSMO software subscription licences, training and software maintenance support. See sole source document in requirement package.

DLA has and continues to exercise competition as often as possible and is required to conduct ongoing reviews to keep abreast of new technology, both in industry and in the Government as a continuing effort within DLA. DLA always uses a variety of vendors, manufacturers and contracts to fulfill its requirements and will continue its practice of surveying the market to ensure full and open competition. No other sources have demonstrated the capability necessary to provide the maintenance support at this time.

9. ANY OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION:

RS Means (dba The Gordian Group) is the only vendor authorized to provide RSMO software subscription licenses and training.

10. A LISTING OF THE VENDOR SOURCES, IF ANY, WHICH EXPRESSED IN WRITING AN INTEREST IN THE ACQUISITION:

RS Means (dba The Gordian Group)
1099 Hingham Street, Suite 201
Rockland, MA 02370
T 781-422-5000

11. A STATEMENT OF ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR SUPPLIES OR SERVICES:

DLA has and continues to exercise competition as often as possible and is required to conduct ongoing reviews to keep abreast of new technology, both within industry and the Government. Furthermore, DLA utilizes a variety of vendors, manufacturers, and contracts to fulfill its requirements and will continue the practice of surveying the market to ensure future full and open competition. Requirements will continue to be posted on SAM.gov to ensure fair opportunity is given and no other providers are available.

